

Sarojamma vs Ramu V/S Smt Sampathmma on 30 September, 2022

Author: V. Srishananda

Bench: V. Srishananda

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 30TH DAY OF SEPTEMBER, 2022

BEFORE

THE HON'BLE MR. JUSTICE V. SRISHANANDA

R.F.A. NO. 1198/2007(PAR)

BETWEEN

V S RAMU
SINCE DEAD BY HIS LRS

1. SAROJAMMA
WIFE OF LATE V.S.RAMU
AGED ABOUT 62 YEARS
2. R.RAVINDRANATH
AGED ABOUT 45 YEARS
3. B.R.SHASHI BHUSHAN
AGED ABOUT 43 YEARS
4. B.R.MANJUNATH
AGED ABOUT 38 YEARS

APPLICANT 1 IS WIFE,
AND APPLICANTS 2, 3 AND 4 ARE
SONS OF V.S.RAMU

THEY ARE RESIDING AT
NO.6, ANDHANAPPA LANE,
KARADI REVANASIDDAPPAPETE

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AVENUE ROAD CROSS
BANGALORE-560 002.

5. B.R.SUJATHA

W/O G.RAMANNA
RESIDING AT MARAPPA LAYOUT
BEHIND CHURCH
SUBRAMANYAPURA POST
UTTARAHALLI, BANGALORE.

6. B.R.BARATHI
W/O J.N.SREENIVAS
AGED ABOUT 36 YEARS
R/O NEAR RAGHAVENDRASWAMY TEMPLE
SHIDLAGHATTA-PIN : 562 105.
7. B.R.SHEELAVATHI, W/O GIRISH
AGED ABOUT 33 YEARS
C/O R.RAVINDRANATH
NO.6, ANDHANAPPA LANE
KARADI REVANASIDDAPPA PETE
AVENUE ROAD CROSS
BANGALORE - 560 002.

...APPELLANTS

(BY SRI M S VARADARAJAN AND
SRI V.SHIVAREDDY, ADVOCATES)

AND

1. SMT SAMPATHMMA
W/O LATE V S MUNISWAMI
AGED ABOUT 59 YEARS
2. K N LAKSHMI VENKATESH
3
S/O LATE V S MUNISWAMI
AGED ABOUT 39 YEARS
3. K N SURESH, S/O LATE V S MUNISWAMI
AGED ABOUT 36 YEARS
4. K N NAGESH, S/O LATE V S MUNISWAMI
AGED ABOUT 33 YEARS
5. SMT.K M VEENA
S/O LATE V S MUNISWAMI
AGED ABOUT 30 YEARS

RESPONDENTS 1 TO 5
RESIDING AT VASUDEVARAYA LANE,
RANGANATHASWAMY TEMPLE ST,
KANAKAPURA TOWN,
BANGALORE RURAL DISTRICT.

6. SMT. JAYAMMA
W/O LATE BALAKRISHNA
AGED ABOUT 50 YEARS

7. SRI D BABU, S/O LATE BALAKRISHNA
AGED ABOUT 30 YEARS

8. D SHAMU, S/O LATE BALAKRISHNA
AGED ABOUT 28 YEARS

RESPONDENTS 6, 7 AND 8 ARE
RESIDING AT NO.33,
CHOULTRY GUNDAPPA HOUSE,
OPP.SOPARNIKA BAKERY,
NR.MECCA MASJID ROAD,

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VASANTHAPPA BLOCK,
GANGANAGAR, BANGALORE-32.

9. SMT.SAMPATHAMMA
W/O LATE V S MUNISWAMI
AGED ABOUT 61 YEARS

10 . SMT.SUJATHA, D/O.LATE V S MUNISWAMI
AGED ABOUT 40 YEARS

RESPONDENTS 9 AND 10 ARE
R/AT.SADAHALLI VILLAGE,
YELAHANKA HOBLI,
BANGALORE NORTH TALUK.

...RESPONDENTS

(BY SRI VISWANATHA SETTY.V, ADVOCATE
FOR R1 TO R5;
NOTICE TO R6, R8 SERVED UNREPRESENTED;
VIDE ORDER DATED 01.08.2012,
SERVICE OF NOTICE TO R7 DISPENSED WITH;
VIDE ORDER DATED 09.02.2010, NOTICE OF R9 AND
R10 HELD SUFFICIENT)

THIS RFA IS FILED U/S 96 OF CPC AGAINST THE
JUDGEMENT AND DECREE DT.17.02.2007 PASSED IN
O.S.NO.4390/1998 ON THE FILE OF THE XXII ADDL.CITY
CIVIL JUDGE, BANGALORE, PARTLY DECREERING THE SUIT
FOR PARTITION AND SEPARATE POSSESSION.

THIS APPEAL HAVING BEEN HEARD AND RESERVED
FOR JUDGMENT ON 25.08.2022, COMING ON FOR
'PRONOUNCEMENT OF JUDGMENT' THIS DAY, THE COURT
DELIVERED THE FOLLOWING:-

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JUDGMENT

1. Being aggrieved by the judgment and decree passed in OS No.4390/1998 dated 17.02.2007, the defendants have preferred this appeal.
2. The parties are referred to as per their ranks in the Trial Court.
3. Brief facts of the case are as under:

The plaint averments reveal that one Muddamma and J.S. Venkataramanappa had five children namely (1) V.S.Ramu, (2) V.S.Muniswamy, (3) Balakrishna, (4) Venkatappa and (5) Bhagyamma. Sri J.S. Venkataramanappa died intestate on 26.07.1961 leaving behind the defendants 1 & 2 and the father of plaintiffs 2 to 5 as legal heirs. The plaint averments further reveals that among them, J.S. Venkataramanappa's wife Muddamma and their children Venkatappa and Bhagyamma are dead. The aforesaid Venkatappa and Bhagyamma died unmarried. V.S. Muniswamy, father of plaintiffs 2 to 5 had two wives with the same name Smt. Sampathamma. First plaintiff is the second wife of V.S. Muniswamy and they had four children who are defendant Nos.2 to 5. Defendant Nos.1 & 2 V.S. Ramu and Balakrishna are the sons of J.S. Venkataramanappa and defendant No.3 Sampathamma is the wife and defendant No.4 Smt. Sujatha is the daughter of V.S. Muniswamy. V.S. Muniswamy died intestate on 05.07.1991 leaving behind the plaintiffs and defendant Nos.3 & 4 as his legal representatives. It is further contended that the suit properties are the joint family properties of the plaintiffs and defendants and therefore, the plaintiffs are entitled for 1/3rd share along with defendant Nos.3 & 4 and when demanded, the defendants refused to grant share which necessitated the plaintiffs to approach the court of law with the aforesaid suit seeking their share in the suit properties.

4. During the pendency of the suit, second defendant died and his legal representatives are brought on record. Defendant No.1 and legal representatives of defendant No.2 filed a joint written statement denying the genealogy and relationship and also other plaint averments. Further, they contended that defendant Nos.1 & 2 became the absolute owner of the suit property as per the partition that was effected between plaintiff Nos.1 & 2 with defendant No.3 late V.S. Muniswamy. It is further contended that second defendant sold the portion of the suit properties that has fallen to his share in the partition between himself and his two brothers. It is further contended that V.S. Muniswamy had two wives by same name Smt. Sampathamma and Plaintiff Nos.2 to 5 are children born to V.S. Muniswamy through second wife Sampathamma was denied subsequently. The only admission in the written statement is that J.S. Munivenkatappa died leaving behind the suit property.

5. Defendant Nos.3 and 4 filed a joint written statement denying genealogy and relationship of plaintiffs with the family. It is further contended by them that though defendant Nos.3 & 4 are the wife and daughter of V.S. Muniswamy and there is no difference of opinion between defendant No.1, V.S. Muniswamy and Balakrishna. They denied the joint possession of the plaintiff in the suit property. They denied the joint possession of the plaintiffs in the suit property along with these

defendants and sought for dismissal of the suit.

6. Based on the rival contentions of the parties, learned Trial Judge framed the following issues:

- "1. Do the plaintiffs prove the pedigree mentioned in the plaint?
2. Do the plaintiffs prove that suit property is the joint family property?
3. Does defendant No.1 prove the Will executed by late Muniswamy in his favour?
4. Is Court fee paid insufficient?
5. Are plaintiffs entitled to 1/3rd share in the suit property?
6. What Order Or Decree?"

7. In order to prove the case of the plaintiffs, first plaintiff got examined herself as PW-1 by filing an affidavit in lieu of her examination in chief. A witness by name K.M. Lakshmivenkatesh was also examined as PW-2 on behalf of the plaintiff to establish the relationship of plaintiffs with other defendants. On behalf of the plaintiffs, as many as 26 documents are relied on which were exhibited and marked as Exs.P1 to P-26 comprising of Ex.P-1 Death certificate of V.S. Muniswamy, Ex.P-2 Encumbrance certificate, Ex.P-3 Katha extract, Exs.P-4 to P-6 are the photographs, Exs.P-7 and P-8 are the Transfer certificates of plaintiff Nos.2 & 3, Exs.P-9 and P-10 are the SSLC Marks Card of Plaintiff Nos.4 & 5, Exs.P-11 to P-13 are the copy of the complaints, Exs.P-14 to P-17 are the acknowledgements, Exs.P-18 to P-25 are the letters, Ex.P- 26 is the money order receipts totally 93 numbers.

8. On behalf of the defendants V.S. Ramu, who is the first defendant got himself examined as DW-1 and Smt. Sampathamma, wife of late V.S. Muniswamy who is defendant No.3 is examined as DW-2 and one Narayanappa is examined as DW-3. On behalf of the defendants, 18 documents were relied on, which were exhibited and marked as Exs.D-1 to D-18 comprising of Ex.D-1 Certified copy of the sale deed, Ex.D-2 is the Mortgage deed, Exs.D-3 and D-4 are the Registered Mortgage Deed, Ex.D-5 Original Will, Exs.D-6 and D-7 is the Encumbrance certificate, Ex.D-8 is the extract of the property tax demand register. Exs.D-9 and D-10 are the death certificates, Ex.D-11 is the Tax paid receipt, Ex.D- 12 is the certified copy of the mortgage deed, Exs.D-13 and 14 are the genealogical tree and Ex.D-15 is the wedding card of plaintiff No.1 and Ex.D-16 is the letter issued by Hanumanthanagar Co-operative Bank, Ex.D-17 is the letter issued by Karnataka State Financial Corporation and Ex.D-18 is the Marriage Invitation Card.

9. The Trial Court on cumulative consideration of the oral and documentary evidence on record, decreed the suit of the plaintiffs in part by granting 1/3rd share to plaintiff Nos.2 to 5.

10. Being aggrieved by the same, the first defendant has filed the present appeal on the following grounds:

"The trial court grossly erred in placing heavy reliance on Exhibits P7 to P10, the school records of plaintiffs 2 to 5 in which the name of late V.5.Muniswamy is alleged to have been shown as the father of plaintiffs 2 to 5.

In coming to the said conclusion, the trial court grossly erred in not appreciating these documents are not proved strictly in accordance with the rules of evidence in that the school authorities or other authorities in the department of education had not been summoned to prove the contents of these certificates. In the absence of certain evidence, the trial court ought not to have placed reliance on the interested testimony of P.W.1 and P.W.2 who were not competent to prove the contents of these documents.

The trial court committed a serious mistake in placing reliance on P10 to P20, letters alleged to have been written by the 1st defendant to 1st plaintiff, though the same had been categorically denied by defendant-1 during the course of his evidence.

In view of the strong denial of these letters by the 1st defendant, the trial court ought not to have placed reliance on these documents only on the interested testimony of P.Ws.1 and 2 there being no independent evidence to show that these letters are written by the 1st defendant.

Similarly the trial court committed a grave mistake in placing reliance on Exhibit P26 series, the alleged Money Order receipts though there was nothing to indicate that any money had been sent by the 1st defendant to the 1st plaintiff towards her alleged maintenance. More particularly when the 1st defendant had denied the same, the trial court ought not to have acted on these receipts in the absence of independent corroborative evidence as regards these alleged Money Order receipts.

The conclusion of the trial court that letters and the money order receipts shall be that 1st plaintiff was being treated as an aunt and her children are being treated as cousins by the other defendants, cannot be accepted when there was no independent evidence what so ever, more particularly to prove the authenticity of these letters and the receipts. The trial court failed to appreciate in proper perspective the documentary evidence produced by the defendant namely the marriage invitation card of 1st plaintiff which clearly showed that she was married to a different person and that therefore her alleged marriage with late V.S. Muniswamy was not true.

Since the documentary evidence produced by the defendants clearly showed that 1st plaintiff was married to a different person and also since the trial court itself has held that there is no evidence to show that 1st plaintiff was married to Muniswamy, it grossly erred in holding that plaintiffs 2 to 5 are children of Muniswamy and that therefore they are entitled to a share in the suit schedule property. Moreover once the trial court came to the conclusion that the 1st plaintiff was not married to Muniswamy and that therefore she is not entitled for share, it ought to have therefore

held that plaintiffs 2 to 5 even if they were born to Muniswamy were not entitled for any share, they not being the legitimate children of Muniswamy.

The trial court grossly erred in dismissing the claim of the 1st defendant based on the Will of Muniswamy Exhibit D5, though Exhibit D5 had been proved beyond shadow of any doubt by examining the attesting witness whose evidence was unimpeachable.

The trial court failed to notice that even P.W.1 during her cross-examination had admitted that the Will contained the signature of late V.S. Muniswamy and this was more than sufficient to hold that the Will exhibit D5 set up by the 1st defendant was a genuine document.

The trial court grossly erred in holding that defendant has taken an active part during the course of execution of DS by late Muniswamy and therefore the same cannot be accepted. In coming to the said conclusion the trial court over looked the well settled principle that merely taking an active part by itself is not a suspicious circumstance to disbelieve the Will. Further in coming to the said conclusion, the trial court overlooked the fact that that was not even the case made out by the plaintiffs as they had not challenged the Will either by filing a rejoinder or by challenging the Will during the course of evidence. Once it is held that Exhibit D5 is duly proved, then it should follow as a matter of consequence that there was an oral partition amongst the 3 brothers as had been contended by the defendant, firstly because there is a clear recital about the said partition in the Will and secondly because the Will deals with only a portion of the property that had been allotted to the share of Muniswamy.

The trial court failed to appreciate that because there was already a partition, 2nd defendant Balakrishna could sell his portion through a registered sale deed in favour of Muniraju and Shamala.³² The trial court failed to see that on the basis of the Will the 1st defendant had been registered as the kathedar of the portion that had been allotted in his favour in the earlier partition as well the portion that was bequeathed in his favour under Exhbt.D5 and that the plaintiffs at no point of time raised any objection for the 1st defendant being registered as the kathedar of these 2 portions of the suit schedule property.

The trial court failed to notice that the suit is filed long after the 1st defendant had constructed a multi- storeyed building after demolishing the old structure and that the same was not possible if any partition had not already taken place in the family and also because of the WillExhibt.D5 that had come into operation after the death of Muniswamy. The trial court failed to notice that the Will Ex.D5 is dated 19.2.1975 while Muniswamy passed away nearly six years later on 5.7.1981 and that if there was anything suspicion about the Will it was always open for Muniswamy to revoke the same. The trial court failed to notice that out of the entire suit property, one portion which was allotted to the 2nd defendant had been sold in favour of Muniraju and Shamala and that in their absence the present suit was not maintainable.

The trial court grossly erred in holding that Muniswamy had no competence to execute the Will exhibit D5 though there was no averment in the plaint as to want of competence on the part of Muniswamy to execute the said Will, nor was there any averment to show that 1st defendant is instrumental in the execution of the said Will, and more particularly when there was no issue whatsoever on the question of genuineness or otherwise of the Will in question.

Viewed from any angle, the impugned judgment and decree are opposed to the facts and probabilities of the case. The conclusions are perverse in that no conclusion was possible having regard to the evidence that was available on record. The conclusions are also arbitrary and capricious in that several important documents like the marriage of the 1st plaintiff with a different person, the sanctioned plan and license produced by the 1st defendant are not even taken note of. Similarly the conclusions are perverse because the trial court has acted on evidence which are not legally admissible in law like placing reliance on school certificates which are not properly proved according to the rules of evidence and placing reliance on certain letters and money order receipts which had not been proved by any independent corroborative evidence, though they had been denied by the 1st defendant. Thus the impugned judgment and decree are liable to be set aside."

11. Reiterating the grounds urged in the appeal memorandum, Sri M.S. Varadarajan, vehemently contended that the Trial Court failed to properly appreciate the materials on record and sought for allowing the appeal.

12. He further contended that the marriage of the first plaintiff is not properly established and as such, legitimacy of the children born out of void/voidable marriages cannot claim right in co-parcenary property and therefore, the suit ought to have been dismissed. He also pointed out that the relationship of plaintiffs with late V.S. Muniswamy is not properly established and as such, the Trial Court ought not to have decreed the suit of the plaintiffs.

13. By plain reading of Ex.D-15, it reveals that wife and children of V.S. Muniswamy shall also have the right in the property. The said recital in the Will would run counter to the defence taken by the defendants. Further, admittedly, third defendant is having a sole daughter who is the fourth defendant Smt. Sujatha, there could not have been recital in the Will that wife and children of V.S. Muniswamy are also having the right. The plurality mentioned in Will i.e., 'Children' would definitely indicate that plaintiff Nos.2 to 5 are the children of V.S. Muniswamy. Further, the attesting witness admits that suit is filed by wife of V.S. Muniswamy for partition and allotment of her share. Therefore, the finding recorded by the Trial Court that the Will is surrounded by suspicious circumstances and not in accordance with law and needs to be confirmed.

14. In support of his arguments he relied on the judgment reported in AIR 2010 SC 2685 in the case of Bharatha Matha and another vs. Vijaya Renganathan and Others. More particularly, paragraph 28 of the said judgment, it is held as under:

"28. In *Jinia Keotin v. Kumar Sitaram Manjhi* [(2003) 1 SCC 730] this Court held that while engrafting a rule of fiction in Section 16 of the Act, the illegitimate children have become entitled to get share only in self-acquired properties of their parents. The Court held as under: (SCC pp. 733-34, paras 4-5) "4. ... Under the ordinary law, a child for being treated as legitimate must be born in lawful wedlock. If the marriage itself is void on account of contravention of the statutory prescriptions, any child born of such marriage would have the effect, per se, or on being so declared or annulled, as the case may be, of bastardising the children born of the parties to such marriage. Polygamy, which was permissible and widely prevalent among the Hindus in the past and considered to have evil effects on society, came to be put an end to by the mandate of Parliament in enacting the Hindu Marriage Act, 1955. The legitimate status of the children which depended very much upon the marriage between their parents being valid or void, thus turned on the act of the parents over which the innocent child had no hold or control. But, for no fault of it, the innocent baby had to suffer a permanent setback in life and in the eyes of society by being treated as illegitimate. A laudable and noble act of the legislature indeed in enacting Section 16 to put an end to a great social evil. At the same time, Section 16 of the Act, while engrafting a rule of fiction in ordaining the children, though illegitimate, to be treated as legitimate, notwithstanding that the marriage was void or voidable chose also to confine its application, so far as succession or inheritance by such children is concerned to the properties of the parents only.

5. So far as Section 16 of the Act is concerned, though it was enacted to legitimise children, who would otherwise suffer by becoming illegitimate, at the same time it expressly provides in sub-section (3) by engrafting a provision with a non obstante clause stipulating specifically that nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage, which is null and void or which is annulled by a decree of nullity under Section 12, 'any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents'. In the light of such an express mandate of the legislature itself, there is no room for according upon such children who but for Section 16 would have been branded as illegitimate any further rights than envisaged therein by resorting to any presumptive or inferential process of reasoning, having recourse to the mere object or purpose of enacting Section 16 of the Act. Any attempt to do so would amount to doing not only violence to the provision specifically engrafted in sub-section (3) of Section 16 of the Act but also would attempt to court re-legislating on the subject under the guise of interpretation, against even the will expressed in the enactment itself. Consequently, we are unable to countenance the submissions on behalf of the appellants."

This view has been approved and followed by this Court in *Neelamma v. Sarojamma* [(2006) 9 SCC 612]."

15. On the same point he also placed reliance on the judgment of the High Court of Madras in the case of Dhanalakshmi vs. Prabhavathy, rendered in SA 527 of 2008 dated 7.3.2011.

16. Per contra, learned counsel for the respondent supported the impugned judgment. He further contended that V.S. Muniswamy having married Sampathamma and relationship having been established by the plaintiffs, they are entitled for the share equal to the children born to the first wife Sampathamma. He also contended that the illegitimate children will be entitled for the share equal to the share of the legitimate children in the father's property and therefore, the Trial Court decreeing the suit is perfectly justified and sought for dismissal of the appeal.

17. In view of the rival contentions of the parties, following points would arise for consideration:

(i) Whether the plaintiffs have made out a case for grant of share in the suit property, in the share of Muniswamy equal to Smt. Sujatha, born through first wife Sampathamma?

(ii) Whether the impugned judgment is suffering from legal infirmity or perversity and thus calls for interference?

18. In the case on hand, the relationship is disputed by the defendants. In order to prove the relationship, second wife of Muniswamy, Smt. Sampathamma got examined herself as PW-1. She filed an affidavit in lieu of her examination in chief, wherein paragraph 5 of the affidavit, she has detailed out the genealogy. She relied on the death certificate of Venkataramanappa, who is the father of Muniswamy, so also the Death certificate of V.S.Muniswamy. She has also produced the encumbrance certificate in respect of the suit property. In particular, for the purpose of proving the relationship, she has relied on the photograph of herself with V.S.Muniswamy and plaintiff No.2. She has also relied on number of photographs and school transfer certificate, school certificates and SSLC Marks Card wherein the father's name of plaintiff Nos.2 to 5 are mentioned as V.S.Muniswamy. She has also relied on the complaint lodged to Commissioner of Police. In her cross examination, suggestion made to her that she never married V.S.Muniswamy is denied by her. She denied that she is the wife of one Venkataravanappa on 26.06.1964. However, she has admitted that she has not produced any document to show that she lived with V.S.Muniswamy, V.S. Ramu and Balakrishna jointly. She also denied that late V.S.Muniswamy lived with first wife Sampathamma jointly with the defendants 1 & 2. She admits that first wife Sampathamma has a daughter by name Vijayalakshmi and she was born to V.S.Muniswamy through Sampathamma. She has specifically stated that Sampathamma who is defendant No.3, is the only wife of Muniswamy.

19. K.M. Lakshmi Venkatesh, was examined as PW-2. He has filed an affidavit in lieu of examination in chief. The evidence in the examination in chief of this witness, practically is the replica of the examination in chief of PW-1. In his cross examination, he denies the suggestion that late Muniswamy is not his father. So also, he was not the husband of first plaintiff. He denies the suggestion that husband of first plaintiff is Chikkavenkataravanappa and their marriage took place on 26.06.1994 in Anjaneyaswamy Temple. He denied the knowledge of marriage of V.S. Muniswamy with third defendant. He has answered that third defendant is second wife of his father

and they have a daughter by name Sujatha. She is also called as Vijayalakshmi. He denied the suggestion that third defendant is the only wife of V.S. Muniswamy. He denied the suggestion that V.S. Muniswamy was never married his mother. He has answered that he was born in Kanakapura in the year 1969 and so also the plaintiffs 3 to 5 were born at Kanakapura and they lived in Kanakapura for about 30 years. He has admitted the suggestion that suit property was originally held by J.S. Venkataramanappa who is his paternal grand father. He admits that Venkataramanappa had four sons namely V.S. Ramu, V.S. Muniswamy, Venkatappa and Balakrishna. He also admits that there was a daughter by name Bhagyamma. He admits that he had seen Bhagyamma about 25 years back. He denied that genealogy furnished in the examination in chief/affidavit is not correct. He has stated that his father Muniswamy died on 05.07.1981 in suit property. He has further answered that V.S.Ramu and V.S. Balakrishna and their respective wife and children did reside in suit property at the time of death of his father. He has answered that last rites of his father were performed by V.S.Ramu and V.S. Balakrishna. He further denied the suggestion that himself and his mother did not attend the death ceremony of V.S. Muniswamy. He denied the suggestion that neither himself nor his mother and his siblings have no right in the suit property. In his further cross examination, he has answered that he is the eldest child of his mother and his mother had no issues since 1964 to 1969. He has answered that he has produced the ration card, voters list, school record to prove plaint averments. He denied the suggestion that Muniraju and Shamala have purchased the share of defendant No.2 and his legal heirs. He has answered that plaintiffs were being paid Rs.300/- to plaintiffs every month as per money order receipts.

20. Sri V.S. Ramu, first defendant is examined as DW-1. He filed his affidavit re-iterating the contents of the written statement. He marked 17 documents as referred to supra as Exs.D-1 to D-17. In his cross examination, he has stated that the Will was prepared in his presence in the office of the Advocate Sri B.Siddappa who is his neighbour. He further answered that Veerabhadrapa and Gopal are his neighbours and they told that Advocate B.Shivappa, is no more. He has stated that Rajgopal and Narayanappa are the attestors to the Will. V.S. Muniswamy was the father of Rajgopal who lived in his neighbourhood. Venkatappa is the father of Narayanappa and resident of Shanumangala, Bidadi Hobli and he is alive. He denied the suggestion that Will at Ex.D-5 was not at all executed and it is a concocted document. He answered that as per the Will, he applied for transfer of Revenue records by filing necessary application. He has stated that revenue authorities accepted the Will and transferred the katha in his name. He has stated that he has obtained loan by deposit of title deeds as per Ex.D-12. Despite the order of Temporary Injunction, he has created mortgage by deposit of title deeds. He has denied that Ex.D-15 is concocted for the purpose of the case. He denied having paid Rs.300/- to Rs.1,000/- to the first plaintiff to Kanakapura address through money orders marked at Ex.P.26. He denied the hand writing in Ex.P-18. He denies the suggestion that Exs.P-19 to P-25 are the letters written by his family members to first plaintiff. He denied that plaintiffs and defendants are the joint family members.

21. Sampathamma wife of V.S. Muniswamy got herself examined as DW-2. She also filed affidavit in lieu of examination in chief and sought for dismissal of the suit. She has relied on the marriage invitation card marked at Ex.D-18.

22. In her cross examination, she denied the suggestion that plaintiff is the first wife of V.S. Muniswamy. She admits that she is a house wife and she has no independent income ad her daughter studied upto third standard. She admits that plaintiffs and defendants 2 to 4 are together entitled to 1/3rd share in the suit property. She denied that Ex.D-18 is a concocted document. This witness is also cross examined by first defendant. In such cross examination, she admits that first defendant is the elder brother of her husband and none of them are alive. She admits that first defendant working as an Agricultural Officer and retired from service before institution of the suit. She admits that first defendant had constructed the building out of his own savings. She admits the signature of her husband at Ex.D5 as D5(C). She admits that first defendant looked after the expenses of her husband. She has answered that she is the only wife of V.S. Muniswamy.

23. Narayanappa, one of the attestors to the Will is examined as DW-3 filed an affidavit stating that first plaintiff is married to Chikkavenkata ramanappa and residing in her marital house. He has stated that there is a Will executed by V.S. Muniswamy on 19.02.1975 and he has signed the Will as a witness as per Ex.D5(d). He further stated that third defendant is the only wife of V.S. Muniswamy and V.S. Ramu is the absolute owner and in possession and enjoyment of the suit property.

24. In his cross examination, he has answered that he cannot give the date of marriage of his daughter. He has answered that on 19.02.1975, alleged Will was executed by V.S. Muniswamy and he does not remember the date of death of Muddamma. However, it is stated that V.S. Muniswamy died in the year 1979. He has answered that Shivappa, Advocate, had come from Avenue road.

25. The above evidence is sought to be re-

appreciated by the appellant for allowing the appeal.

26. On perusal of the entire materials on record and on cumulative consideration of the same, in the case on hand, there is no dispute that the suit property earlier belonged to J.S.Venkataramanappa. There is no dispute that V.S. Muniswamy is one of the sons of JS Venkataramanappa. Said J.S.Venkataramanappa died intestate on 26.7.1961. Subsequent to his death, Muddamma being the wife of J.S.Venkataramanappa and his children succeeded to the suit property. Thereafter, Muddamma, one of the sons Venkatappa and the daughter Bhagyamma also died intestate.

27. It is the case of the plaintiff that first plaintiff is the wife of the V.S. Muniswamy and plaintiffs 2 to 5 are born from out of the said marriage. It is also contended by the plaintiffs that third defendant Sampathamma is the second wife and 4th defendant is the daughter born to her through V.S. Muniswamy. The said relationship is denied by the defendants. While 3rd defendant claims that she is the first wife, first defendant denies the relationship of plaintiffs with V.S. Muniswamy in toto.

28. In order to prove the relationship, plaintiff Nos.1 & 2 got examined themselves as PWs.1 & 2 and relied on documentary evidence exhibited and marked as Exs.P-1 to P-26. It is pertinent to note that the name of the first plaintiff and third defendant is one and the same i.e., Sampathamma. Plaintiffs in order to prove their relationship with deceased V.S. Muniswamy placed reliance on school leaving certificate issued by the Head Master of Government High School of Chikkamudavadi, Kanakapura

Taluk. Among them, Ex.P-7 would disclose that plaintiff No.2 was born on 10.6.1969 and name of his father has shown as V.S. Muniswamy. Ex.P-8 is the school leaving certificate with regard to plaintiff No.3 which discloses that date of birth of third plaintiff as 10.8.1972. Father's name is again shown as V.S. Muniswamy. Likewise, in respect of fourth plaintiff, Ex.P-9 is relied and in respect of fifth plaintiff Ex.P.10 is relied. These documents, admittedly, had come into being at an un-disputed point of time. These documents having been issued from the Governmental agency namely the Head Master of Government High School, carries sufficient probative value. Of course, the same can be disproved by placing a rebuttal evidence. No such rebuttal evidence is placed on record. when documents pertaining to school records are placed on record to prove the relationship, further oral evidence as contemplated under Section 50 of Indian Evidence Act is un-necessary. Nevertheless, PW-1 in her oral evidence stated that first defendant used to send Rs.300/- per month towards the maintenance of the family by way of money order. 93 money order receipts are together marked as Ex.P-26. It is highly un-believable that the plaintiffs would concoct 93 money order receipts over a period of time only with a malafide intention to file a suit against the defendants at a later point of time. Therefore, the material on record is sufficient enough to establish that plaintiff Nos.2 to 5 are born out of the wedlock between the first plaintiff and late V.S. Muniswamy. However, the material evidence on record is not sufficient to establish that first plaintiff is the first wife of V.S. Muniswamy. Therefore, the Trial Court recorded a finding that it is third defendant who is the first wife of the V.S. Muniswamy.

29. Plaintiffs who are the respondents in the present appeal did not choose to challenge the finding of the Trial Court that first plaintiff is the first wife of late V.S. Muniswamy. In the absence of any challenge to the said finding, the plaintiffs 2 to 4 and defendant Nos.3 & 4 are to succeed to the interest of late V.S. Muniswamy in the suit property.

30. In order to defeat the interest of the legal representatives of late V.S. Muniswamy, first defendant set up a will marked at Ex.D-15. However, the said Will is not properly proved by the propounder i.e., first defendant. Appeal grounds also do not seriously question the said finding.

31. Having discussed about the establishing the relationship of plaintiffs with deceased V.S. Muniswamy, plaintiffs 2 to 5 are entitled for the share in the suit property along with defendant Nos.3 & 4.

32. The decision relied on by the appellant in the case of Bharathamatha supra, deals with the proposition of grant of share in the ancestral property. In the case on hand, in the impugned judgment, the share i.e., granted to the plaintiffs is in the interest of deceased V.S. Muniswamy. Therefore, even though there is no dispute as to the principles of law enunciated in Bharathamatha supra, the same is of not much avail to the appellant in assailing the impugned judgment. Same is the proposition of law in the case of Dhanalakshmi supra. Further, whether at all a illegitimate children can claim a share in ancestral property is now pending before the larger bench of Hon'ble Apex Court in the case of Revanasiddappa.

33. Having said thus, this court in the case of Kenchegowda Vs. K.B. Krishnappa, reported in ILR 2008 KAR 3453 has held that the illegitimate children can lay claim and seek their share equivalent

to legitimate children in the father's property. The same is approved by the Hon'ble Apex Court. The relevant paragraphs of the said judgment reads as under:

"17. Prior to the Act, 1955 there was no prohibition for a Hindu to have more than one wife. Therefore, all the children born to the said wife were treated as legitimate children and members of joint family or co-parcenery. It is only a child born to concubine was treated as illegitimate child. Each one of these legitimate children had a right to maintain a suit against their father for partition and separate possession of their legitimate share either in the joint family property or in the co-parcenary property. After the passing of the Act, 1955 a prohibition was imposed on the Hindus to enter into second marriage during the life time of the spouse. The personal law of Hindus to that extent ceases to have effect. The Act had over-riding effect and the personal Law of Hindus in so far as the marriages are concerned stood amended in terms of the Act. Therefore second marriage of a Hindu during the life time of the spouse is prohibited and such a marriage was declared as void. A son born to the said void marriage was deprived of a right under the Traditional Hindu Law because the provisions of the Act, excluded the application of personal law in this regard and under the Hindu Succession Act, 1956, for short hereinafter referred to as succession Act?, because he was not a legitimate son. The Parliament after noticing this injustice done to an illegitimate child for the folly of its parents thought of introducing Section 16 to the Act. It read as under:

?16. Legitimacy of children of void and voidable marriages- (1) Notwithstanding that a marriage is null and void under Section 11, any child of such marriage who would have been legitimate if the marriage had been valid shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under Section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled shall be deemed to be their legitimate child notwithstanding the decree of nullity.

(3) Nothing contained in sub-section (1) of sub-

Section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under Section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents?.

By section 16, what the Parliament intended to do was to remove the stigma of bastardliness attached to a child born of such void marriage and the child has been relegated the status of a legitimate child. Therefore, after the amendment Act, 1976 which introduced Section 16 into the Act, the illegitimate son has been given equal status as that of legitimate son. That is precisely what is sought to be done under Section 16(1) and (2) of the Act. However the Parliament was conscious of the consequences of such status being given to an illegitimate child as it would affect other persons who are in no way responsible for the birth of an illegitimate child. Therefore they made it clear by introducing Section 16(3) to the effect that such an illegitimate son who is admitted to be legitimate son by virtue of Section 16(1) and (2), will have a right only in the properties of the parents and none else. Thus the conferring of the status did not affect the rights of the persons other than the parents in the property."

34. Applying the legal principles enunciated in the above judgment to the facts of this case, plaintiff Nos.2 to 5 being the children born to V.S. Muniswamy through first plaintiff and having regard to the fact that the Trial Court recorded a finding that the third defendant is the first wife, the share of late V.S. Muniswamy in the suit property, is to be divided among the plaintiff Nos.2 to 5 and defendant Nos.3 and 4 equally.

35. In view of the foregoing discussion, this court is of the considered opinion that the grounds urged in the appeal are not sufficient to upset the findings recorded by the Trial Court in the impugned judgment even after re- appreciation.

36. On the contrary, the finding recorded by the Trial Court are sound, proper and based on the material evidence on record. As such, this court has to invariably answer the points in the negative. In view of the finding on Point Nos.1 & 2 in negative and pass the following:

ORDER Appeal is merit less and hereby dismissed. No order as to costs.

Sd/-

JUDGE PL*